"Colourable piece of legislation is a legislation ostensibly under one or the other of the powers conferred by the constitution but in substance and reality, not falling within the content of that power. The failure to comply with a Constitutional condition for the exercise of legislative power may be overt or it may be covert. When it is overt, we say the law is obviously bad for non-compliance with the requirements of the Constitution, that is to say, the law is *ultra vires.* When, however, the non-compliance is covert, we say that it is a 'fraud on the Constitution', the fraud complained of being that the Legislature pretends to act within its power while in fact it is not so doing. Therefore, the charge of 'fraud on the Constitution' is, on ultimate analysis, nothing but a picturesque and epigrammatic way of expressing the idea of non-compliance with the terms of the Constitution".

4. Doctrine of Fraud on Legislative Power

It must be noted here that the doctrine of fraud on the Constitution is different from the doctrine of fraud on legislative power. The Supreme Court, while explaining this distinction, made the following observation[31]:

1. The doctrine of fraud on legislative power means that the legislature really has the power, but does not exercise that power. It merely pretends to have exercised the power. In the eye of law, such an Act is not a law at all, but is a mere pretence of law and the courts will not take notice of such a law.

2. The doctrine of fraud on the Constitution is altogether a different principle and a serious charge. When there is a constitutional prohibition to make an Act, but the legislature, in spite of the constitutional prohibition, enacts such a law, it is a fraud on the Constitution. Therefore, the distinction between the fraud on legislative power and fraud on the Constitution is clear and unambiguous.

3. The principle of fraud on legislative power is applicable when the legislature has power to enact, but has not exercised that power as envisaged upon. On the other hand, the doctrine of fraud on the Constitution means that when the legislature has no power and in spite of the constitutional prohibition, it makes an enactment in pretence of or purported exercise of the power. It would, therefore, be necessary to examine these concepts in the light of the related subject, the legislative history, the respective entries in the lists concerned of the Seventh Schedule and the power of the legislature to determine whether the legislature has competence to enact law or enacted it by playing a fraud on the Constitution/colourable exercise of power.

5. Important Cases

The important cases relating to the doctrine of colourable legislation and their judgements are given in Table 94.4.

Table 94.4 Important Cases Relating to the Doctrine of Colourable Legislation